HONORABLE ROBERT J. BRYAN

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WASHINGTON
AT TACOMA

AILA CURTIS, et al.,

Plaintiffs,

v.

JAY ROBERT INSLEE, et al.,

Defendants.

No. 3:23-cv-05741-RJB

DEFENDANT GOVERNOR JAY INSLEE'S MOTION TO DISMISS

NOTE ON MOTION CALENDAR: DECEMBER 1, 2023

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I. INTRODUCTION

To combat the COVID-19 pandemic—the deadliest in American history—Defendant Governor Jay Inslee issued Proclamation 21-14 requiring healthcare workers in Washington and most state employees to be fully vaccinated against COVID-19 (the "Proclamation" or "Procl. 21-14"). This requirement was in step with mandates adopted in roughly half the country, and supported by federal guidance showing the vaccines to be safe and effective in reducing the virus' spread and the risk of severe illness or death. By August 23, 2021, nearly two months before the Proclamation took effect, the U.S. Food and Drug Administration (FDA) granted full approval to the Pfizer vaccine.

Plaintiffs—former at-will employees of Defendant PeaceHealth who declined to receive a COVID-19 vaccine—filed a scattershot complaint raising 10 causes of action under the U.S. Constitution and Washington State law—each of which fails as a matter of law for multiple reasons. Among its many deficiencies, the complaint relies on a misstatement of the relevant facts (e.g., contending the vaccines were "investigational drugs" when the Pfizer vaccine was indisputably fully approved at the time the Proclamation was issued), disregards relevant case law (which has consistently upheld vaccine mandates, including the Proclamation specifically, and rejected claims like Plaintiffs'), and fails to distinguish between the actions of PeaceHealth (a private, non-profit healthcare provider) and the Governor. For these reasons and those explained in detail below, each claim against Governor Inslee fails as a matter of law and should be dismissed with prejudice.

II. STATEMENT OF FACTS

This factual summary is based on the allegations in the First Amended Complaint (FAC), documents incorporated by reference into the FAC, and judicially noticeable facts. *See* Fed. R.

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Civ. P. 12(b)(6); *Tellabs, Inc. v. Makor Issues & Rights, Ltd.*, 551 U.S. 308, 322 (2007). Governor Inslee asks the Court to take judicial notice of the government records and data cited herein—including from the FDA, the U.S. Centers for Disease (CDC), and the Washington State Department of Health (DOH). *See* Fed. R. Evid. 201; *King v. Cnty. of L.A.*, 885 F.3d 548, 555 (9th Cir. 2018).

A. The COVID-19 Pandemic and Washington's Emergency Response

In response to the COVID-19 pandemic, "[g]overnments at all levels instituted restrictions to curb the transmission of the virus." *Slidewaters LLC v. Wash. Dep't of Labor & Indus.*, 4 F.4th 747, 752 (9th Cir. 2021), *cert. denied*, 142 S. Ct. 779 (2022). Even with those restrictions, COVID-19 has killed more than 1.1 million Americans, including over 15,000 Washingtonians[1]—making it the "deadliest disease in American history." *Florida v. Dep't of Health & Hum. Servs.*, 19 F.4th 1271, 1275 (11th Cir. 2021) (cleaned up).

On February 29, 2020, amidst the initial COVID-19 outbreak in Washington, Governor Inslee proclaimed a state of emergency. *Slidewaters*, 4 F.4th at 753; Procl. 20-05.[2] Between December 2020 and February 2021, the FDA issued Emergency Use Authorizations (EUAs) for three COVID-19 vaccines developed by Pfizer, Moderna, and Johnson & Johnson.[3] In October 2020, Washington joined California, Oregon and Nevada in a COVID-19 Scientific Safety Review

[1] CDC, *COVID Data Tracker*, http://bit.ly/3LadJ5s (last visited Oct. 26, 2023).

[2] That state of emergency ended on October 31, 2022. Procl. 20-05.1. A repository of Governor Inslee's emergency proclamations is available at: Office of Governor Jay Inslee, *Proclamations*, https://governor.wa.gov/office-governor/office/official-actions/proclamations (last visited Oct. 26,, 2023).

[3] FDA, *FDA Authorizes Pfizer-BioNTech COVID-19 Vaccine for Emergency Use in Children 5 through 11 Years of Age* (Oct. 29, 2021), http://bit.ly/3ZSWgmb; FDA, *Janssen COVID-19 Vaccine* (May 11, 2022), http://bit.ly/3l3SnvW; FDA, *FDA Authorizes Booster Dose of Pfizer-BioNTech COVID-19 Vaccine for Certain Populations* (Sept. 22, 2021), http://bit.ly/3l2nEiY.

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Workgroup (the "Workgroup"), which employed public health and vaccine experts to independently review the safety and efficacy of these vaccines.[4] Between December 12, 2020 and April 24, 2021, the Workgroup recommended the use of the Pfizer, Moderna, and Johnson & Johnson vaccines.[5] The FDA gave full approval to Pfizer's vaccine for people 16 and older on August 23, 2021.[6] *Church v. Biden*, No. CV 21-2815 (CKK), 2022 WL 1491100, at *2 (D.D.C. May 11, 2022). The CDC considers the vaccines to be safe and effective in reducing the risk of severe illness or death due to COVID-19.[7] To facilitate the administration of the vaccines, the CDC entered into COVID-19 Vaccination Provider Agreements ("Provider Agreements") with healthcare providers in the various states, including Washington. Dkt. #8 (the "FAC") ¶ 41, Ex. A.

B. The Delta Surge and Proclamation 21-14

Summer 2021 saw the emergence of the "Delta variant": a new, highly infectious COVID-19 strain. *See Does 1-6 v. Mills*, 16 F.4th 20, 26-27 (1st Cir. 2021), *cert. denied sub nom. Does 1-3 v. Mills*, 142 S. Ct. 1112 (2022) (Mem). Twice as infectious as earlier variants, *id*., Delta spread like wildfire, causing Washington's weekly COVID-19 hospitalization count to jump from a low

[4] *See Western States Join California's Scientific Safety Review Workgroup to Ensure Safety of COVID-19 Vaccine* (Oct. 27, 2020), https://www.gov.ca.gov/2020/10/27/western-states-join-californias-scientific-safety-review-workgroup-to-ensure-safety-of-covid-19-vaccine/

[5] *See* https://www.cdph.ca.gov/Programs/CID/DCDC/CDPH%20Document%20Library/COVID-19/Scientific-Safety-Review-Workgroup-Recommendations-December-2020.pdf; https://www.cdph.ca.gov/Programs/CID/DCDC/CDPH%20Document%20Library/COVID-19/ScientificWorkgroup122020.pdf; https://www.cdph.ca.gov/Programs/CID/DCDC/Pages/COVID-19/WSSSRWStatementunJJPause.aspx.

[6] *See* FDA, *FDA Approves First COVID-19 Vaccine* (Aug. 23, 2021), https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine.

[7] CDC, *Overview of COVID-19 Vaccines* (Nov. 1, 2022), http://bit.ly/3FdTjVv.

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of 293 the week of June 26, 2021, to 1,192 the week of September 4, 2021.[8] While "no vaccine is 100% effective," the COVID-19 vaccines proved highly effective at preventing the virus's spread and severe disease—particularly with the Delta variant. *Mass. Corr. Officers Federated Union v. Baker*, 567 F. Supp. 3d 315, 319-20 (D. Mass. 2021). According to a September 2021 CDC report (when Delta was dominant), unvaccinated people were 5 times more likely to contract, 10 times more likely to be hospitalized with, and 10 times more likely to die from COVID-19 than those who were fully vaccinated.[9] Despite such stark disparities, the Delta surge coincided with a steady decline in vaccination rates.[10] In August 2021, nearly 30% of eligible Washingtonians were unvaccinated. Procl. 21-14 at 2.

On August 9, 2021, Governor Inslee issued Proclamation 21-14, prohibiting healthcare providers and most state employees from working after October 18, 2021, without being fully vaccinated against COVID-19, *i.e.*, at least two weeks post-final dose. Procl. 21-14. Recognizing that COVID-19 vaccines had been found safe and effective based on clinical trials involving tens of thousands of participants and the FDA's rigorous scientific standards, and consistent with the recommendations of the Workgroup, Governor Inslee issued the Proclamation in order to protect some of the most vulnerable populations and ease the burden on Washington's public and private healthcare system. *Id*. at 1–2.

[8] CDC, *COVID Data Tracker*, *supra* note 1.

[9] CDC, *Monitoring Incidence of COVID-19 Cases, Hospitalizations, and Deaths, by Vaccination Status — 13 U.S. Jurisdictions, April 4–July 17, 2021* (Sept. 17, 2021), http://bit.ly/3YQ9tMM.

[10] DOH, *Respiratory Illness Data Dashboard*, https://doh.wa.gov/data-statistical-reports/health-behaviors/immunization/covid-19-vaccination-data (last visited Oct. 26, 2023).

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When it took effect, the Proclamation applied to at least 681,000 workers across the three covered sectors: state government, health care, and education. *Wise v. Inslee*, No. 2:21-CV-0288-TOR, 2021 WL 4951571, at *1 (E.D. Wash. Oct. 25, 2021). The Proclamation required covered employers to evaluate requests for medical and religious exemptions and provide reasonable accommodations, consistent with state and federal antidiscrimination statutes. Procl. 21-14.2 at 5-6. Covered employers had to "conduct[] an individualized assessment and determination of each individual's need and justification for an accommodation." *Id*. at 6.

Independent of the Proclamation, the federal government issued its own COVID-19 vaccination requirement for most U.S. healthcare workers. In November 2021, the U.S. Department of Health and Human Services (HHS) announced that, as a condition of federal Medicare and Medicaid funding, healthcare "facilities must ensure that their staff—unless exempt for medical or religious reasons—are vaccinated against COVID–19." *Biden v. Missouri*, 595 U.S. 87, 89 (2022) (citing 86 Fed. Reg. 61555 (2021)). HHS found that "vaccination of healthcare workers against COVID–19 was 'necessary for the health and safety of individuals to whom care and services are furnished.'" *Id.* at 91 (quoting 86 Fed. Reg. at 61561). This finding was based on "data showing that the COVID–19 virus can spread rapidly among healthcare workers and from them to patients, and that such spread is more likely when healthcare workers are unvaccinated." *Id.* HHS concluded that "unvaccinated [healthcare staff] . . . pose a serious threat to the health and safety of patients." *Id.* The Supreme Court held that the Secretary of HHS did not exceed its authority in adopting the vaccination rule, found that it was not arbitrary and capricious, and rejected other various challenges to it. *Id.* at 95–97.

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C. Unsuccessful Legal Challenges to the Proclamation

After the Proclamation was issued, multiple lawsuits were filed challenging it as facially unconstitutional under a variety of theories. Those challenges were uniformly rejected—including by a court in this District. *See, e.g.*, *Pilz v. Inslee*, No. 3:21-cv-05735-BJR, 2022 WL 1719172, at *1 (W.D. Wash. May 27, 2022) (dismissing challenge to Proclamation); *Bacon v. Woodward*, No. 2:21-CV-0296-TOR, 2022 WL 2381021, at *1 (E.D. Wash. June 30, 2022), *appeal docketed*, No. 22-35611 (9th Cir. Aug. 8, 2022) (same); *Wise v. Inslee*, No. 2:21-CV-0288- TOR, 2022 WL 1243662, at *1 (E.D. Wash. Apr. 27, 2022), *appeal dismissed*, No. 22-35426, 2022 WL 17254335 (9th Cir. Oct. 7, 2022) (same). Similar challenges across the country have likewise failed. *See, e.g., George v. Grossmont Cuyamaca Cmty. Coll. Dist. Bd. of Governors*, No. 22-CV-0424-BAS-DDL, 2022 WL 17330467, at *1 (S.D. Cal. Nov. 29, 2022) ("This action is one of over approximately 1,000 challenges brought nationwide to strike down COVID-19 vaccine mandates. . . . Overwhelmingly, these suits have been unsuccessful.") (cleaned up).

In August 2022, after *Pilz* and other courts had dismissed all legal challenges to the Proclamation and as COVID-19 cases ebbed, the Governor announced termination of the Proclamation and the underlying state of emergency, effective October 31, 2022. *See* Procl. 21-14.6 at 2 (rescinding and terminating Proclamation 21-14 et seq., effective October 31, 2022, at 11:59 PM); Procl. 20-05.1 (declaring "the termination of the state of emergency proclaimed in Proclamation 20-05 and rescind[ing] and terminat[ing] Proclamation 20-05" effective October 31, 2022, at 11:59 PM).

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D. The FAC's Allegations

On August 18, 2023, several former employees of PeaceHealth, a non-profit healthcare system—filed this lawsuit against Defendants PeaceHealth and Governor Inslee (in his individual and official capacities) under 42 U.S.C. § 1983. Following this Court's order requiring amendment, Dkt. # 7, ninety-two former employees (Plaintiffs) filed the operative Amended Complaint on August 31, Dkt. # 8. In a laundry list of scattershot claims, Plaintiffs allege that PeaceHealth and Governor Inslee unlawfully required healthcare workers to take the COVID-19 vaccine as a condition of their continued employment, invoking an array of unsupported legal theories. Specifically, Plaintiffs allege in ten causes of action that: (1) Defendants subjected them to investigational medical products without their consent, contrary to 21 U.S.C. § 360bbb-3, 45 C.F.R. 46.116(b)(8), the Belmont Report, and Article VII of the International Covenant on Civil and Political Rights; (2) Defendants violated the unconstitutional conditions doctrine; (3) Defendants violated Plaintiffs' substantive and procedural due process rights; 4) Defendants violated the Equal Protection Clause; (5) Defendants deprived Plaintiffs of their rights under the Spending Clause Doctrine; (6) Defendants breached the CDC COVID-19 Vaccination Program Provider Agreement; (7) Defendants violated Washington State common law employment torts; (8) Defendants' actions give rise to a claim of outrage; (9) Defendants' actions give rise to a claim of invasion of privacy and/or defamation; and (10) they have an implied private right of action under 21 U.S.C. § 360bbb-3. FAC ¶¶ 190-272. Plaintiffs seek both compensatory and general damages. FAC ¶ 274.

Governor Inslee now moves to dismiss all claims against him.

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III. ARGUMENT AND AUTHORITY

A. Legal Standard

To survive a motion to dismiss for failure to state a claim under Federal Rule of Civil Procedure 12(b)(6), "a complaint must contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (cleaned up). "A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Id.* Whether a complaint states a claim for relief "requires the reviewing court to draw on its judicial experience and common sense." *Id.* at 679. "The court need not accept as true . . . allegations that contradict facts that may be judicially noticed by the court." *Hewitt v. Wells Fargo Bank*, No. 3:22-CV-05729-DGE, 2022 WL 17144728, at *3 (W.D. Wash. Nov. 22, 2022) (citing *Shwarz v. United States*, 234 F.3d 428, 435 (9th Cir. 2000)). Dismissal may be based on either "the lack of a cognizable legal theory or absence of sufficient facts alleged under a cognizable legal theory." *Conservation Force v. Salazar*, 646 F.3d 1240, 1242 (9th Cir. 2011). "Leave to amend need not be granted, and dismissal may be ordered with prejudice, if amendment would be futile," such as when a claim "fails as a matter of law." *Gamble v. Pac. NW Reg'l Council of Carpenters*, No. 2:14-cv-455RSM, 2015 WL 402782, at *7 (W.D. Wash. Jan. 29, 2015).

B. Plaintiffs' § 1983 Claims Fail

To state a claim under Section 1983, Plaintiffs must show that Governor Inslee acted under color of law to deprive them of a right or privilege specifically enumerated under the United States Constitution or the laws of the United States. But Governor Inslee is not subject to suit under Section 1983 in either his official or individual capacity. And despite alleging five distinct counts under § 1983, Plaintiffs fail to identify any specific right that the Proclamation purportedly violated. The Court should, therefore, dismiss Plaintiffs' § 1983 claims against Governor Inslee.

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1. Plaintiffs Cannot Sue Governor Inslee Under § 1983

a. Governor Inslee is not subject to suit in his official capacity

Section 1983 establishes liability for "person[s]" who cause the "deprivation of any rights, privileges, or immunities secured by the Constitution and laws" of the United States. 42 U.S.C. § 1983. But state officials acting in their official capacities are not "persons" subject to suit under Section 1983, unless they are sued for prospective injunctive relief. *Will v. Mich. Dep't of State Police*, 491 U.S. 58, 70–71 (1989); *see also Cipolla v. Ariz. Dep't of Econ. Sec.*, 57 F.3d 1076 (9th Cir. 1995) (affirming dismissal of 1983 claim because "neither a state nor any of its officials sued in an official capacity is a 'person' suable under section 1983"); *Wright v. Airway Heights Corr. Ctr. MSU*, No. 2:20-cv-00436-MKD, 2022 WL 17543678, at *3 (E.D. Wash. Dec. 8, 2022), *appeal docketed*, No. 22-36057 (9th Cir. 2022) ("State agencies and state officials sued in their official capacity are categorically not subject to suit under 42 U.S.C. § 1983.").

Because Plaintiffs seek only damages, not prospective injunctive relief, FAC ¶¶ 273–80, Governor Inslee is not subject to suit under 42 U.S.C. § 1983 in his official capacity.

b. Governor Inslee is entitled to qualified immunity in his individual capacity

Governor Inslee is also entitled to immunity from suit in his individual capacity. *See infra* Section III.D. Because Plaintiffs cannot bring § 1983 claims against Governor Inslee in his individual or official capacity, the Court should dismiss Plaintiffs' claims with prejudice.

2. Plaintiffs' § 1983 Claims Fail As a Matter of Law

Even if Governor Inslee could be sued under § 1983, Plaintiffs' claims would fail on the merits. "Although federal statutes have the potential to create § 1983 enforceable rights, they do not do so as a matter of course." *Health and Hospital Corp. of Marion Cnty v. Tavelski*, 599 U.S. 166, 183 (2023). Instead, to be enforceable under § 1983, a federal law must "unambiguously

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confer" a right on a class of intended beneficiaries. *Gonzaga Univ. v. Doe*, 536 U.S. 273, 283 (2002).

Plaintiffs have not identified any enforceable federal right, let alone any right implicated by the Proclamation. The Court should dismiss their § 1983 claims.

***a. Plaintiffs' "investigational drug use" claim fails* (Count 1)**

Plaintiffs' first count alleges that the Proclamation "unlawfully subjected Plaintiffs to the use of investigational medical products under threat of penalty outside of their free will and voluntary consent." FAC at ¶¶ 193–99. This claim fails because Plaintiffs were not subjected to any "investigational drug," and can identify no federal right that Governor Inslee purportedly violated.

i. The COVID-19 vaccine is not an "investigational drug."

An "investigational new drug" is "a new drug or biological drug that is used in a clinical investigation," 21 C.F.R. 312.3, and that has "not yet been approved or cleared by the FDA and the FDA has not found . . . to be safe and effective for their specific use," *see* FDA Expanded Access: Information for Patients, https://www.fda.gov/news-events/expanded-access/expanded-access-information-patients#:~:text=Investigational (Nov. 7, 2022). Plaintiffs do not allege they were part of any "clinical trial," and cannot dispute that on August 23, 2021—*before* Plaintiffs were required to obtain a COVID vaccine under the Proclamation—the Pfizer vaccine received full FDA authorization. *See* FDA (Aug. 23, 2021), https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine; *see also Valdez v. Grisham*, 559 F.Supp.3d

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1161, 1171 (D.N.M. 2021).[11] Because Plaintiffs have failed to allege they were required to take any "investigational" drug, their claim necessarily fails.

Plaintiffs' claim also fails for the independent reason that they have not identified any enforceable federal right. Plaintiffs assert purported rights under four authorities: 21 U.S.C. § 360bbb-3, 45 C.F.R. § 46, the Belmont Report, and the International Covenant on Civil and Political Rights (ICCPR). FAC ¶¶ 195–98. But each is either inapplicable, unenforceable, or both.[12]

ii. 21 U.S.C. § 360bbb-3 does not apply.

21 U.S.C. § 360bbb-3 governs "emergency use" medications and requires *the Secretary of the U.S. Department of Health and Human Services* to "establish such conditions on an [emergency use] authorization . . . to ensure that individuals to whom the [emergency use] product is administered are informed of the option to accept or refuse administration of the product, of the consequences, if any, of refusing administration of the product." 21 U.S.C. § 360bbb-3(e)(1)(A)(ii). It does not apply to Plaintiffs' claim for three reasons.

[11] Although Plaintiffs falsely allege that "Governor Inslee exclusively relied on investigational new drugs," FAC ¶ 27, Plaintiffs' assertion that the vaccine is an "investigational new drug" subject to the cited regulations is a "conclusory legal assertion" that the court need not accept as true. *Harris v. U.S. BankCorp*, No. 2:19-CV-00291-BJR, 2019 WL 5536402, at *2 (W.D. Wash. Oct. 25, 2019). Even if the Court were to consider this a factual allegation, the Court can and should disregard it because it contradicts clear, judicially noticeable facts: the authorization date of the Pfizer vaccine. *Hewitt*, 2022 WL 17144728, at *3.

[12] Plaintiffs also make an unexplained reference to a "Federal Wide Assurance," FAC ¶ 201, which Plaintiffs contend is an agreement between the State of Washington and the federal government related to conducting research on human subjects, *id*. ¶¶ 76–78 n. 23. But this "assurance" cannot create a federal right enforceable under § 1983. *Tavelski*, 599 U.S. 166; *Gonzaga Univ.*, 536 U.S. at 283. And regardless, the assurance is irrelevant because the Proclamation involves no research on human subjects.

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First, the statute does not apply to the Proclamation: Plaintiffs could have complied with the Proclamation by obtaining the fully authorized Pfizer vaccine, which is not an "emergency use" product subject to the statute. 21 U.S.C. § 360bbb-3(e)(1)(A). *Second*, the statute imposes no obligation on Governor Inslee: it requires the *HHS Secretary* to establish conditions for the administration of emergency use medications, and "those conditions of informed consent only relate to . . the medical providers who administer the vaccine, not those who issue vaccine mandates." *Johnson v. Brown*, 567 F. Supp. 3d 1230, 1256 (D. Or. 2021). *Third*, the provision "specifies only that certain information be provided to potential vaccine recipients and does not prohibit entities from imposing vaccination requirements": Plaintiffs have not alleged they were not provided with information required by the statute. Dep't of Justice, *Whether Section 564 of the Food, Drug and Cosmetic Act Prohibits Entities from Requiring the Use of a Vaccine Subject to an Emergency Use Authorization* at 2 (July 6, 2021), https://www.justice.gov/olc/file/1415446/download; *see also Valdez*, 559 F. Supp. 3d at 1171; *see also Bridges v. Hous. Methodist Hosp.*, No. 21-H-1774, 543 F.Supp.3d 525, 527–28 (S.D. Tex. June 12, 2021) (rejecting hospital employee's claim that under FDCA "no one can be mandated to receive 'unapproved' medicines in emergencies"). Plaintiffs cannot contend they were not advised of their right to refuse the vaccine, but complain only that they were not permitted to do so "*without penalty*." FAC ¶ 57 (emphasis added). But 21 U.S.C. § 360bbb-3 contains no such requirement; to the contrary, it provides that potential recipients be advised of "*the consequences*, if any, *of refusing* administration of the product." 21 U.S.C. § 360bbb-3(e)(1)(A)(ii)(III) (emphasis added). The FAC makes clear Plaintiffs were so advised. *See, e.g.*, FAC ¶ 25.B (Proclamation prohibited "[a]ny operator of a Health Care Setting from permitting a Health Care Provider to engage in work

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for the operator as an employee, contractor, or volunteer in their capacity as a Health Care Provider after October 18, 2021 if the Health Care Provider has not been fully vaccinated against COVID-19"); *id.* Ex. B at 3 (PeaceHealth COVID-19 Vaccination Requirement Policy stated that "[f]ailure to comply may result in corrective action up to and including termination of employment."). Plaintiffs' claim that the Proclamation somehow violates 21 U.S.C. § 360bbb-3 fails.

ii. Plaintiff has identified no other enforceable right.

None of the remaining authorities Plaintiffs cite—45 C.F.R § 46.116, the Belmont Report, or the ICCPR—are enforceable under § 1983 or otherwise independently create a private right of action. *Gonzaga*, 536 U.S. at 283 (noting that private right of action cases "should guide the determination whether a statute confers rights enforceable under § 1983."); *see also Elansari v. Univ. of Penn.*, 779 F. App'x 1006, 1008–09 (3d Cir. 2019) (no private right of action under 45 C.F.R § 46); *Kriley v. Nw. Mem'l Healthcare*, No. 22-1606, 2023 WL 371643, at *2 (7th Cir. Jan. 24, 2023) (no private right of action under the Belmont Report); *Conway v. A.I. Dupont Hosp. for Children*, No. 04-4862, 2007 WL 560502, at *7 (E.D. Pa. Feb. 14, 2007) (same); *Sosa v. Alvarez-Machain*, 542 U.S. 692, 734–35 (2004) (no private right of action under the ICCPR).

Even if these sources established enforceable rights (and they do not), the FAC fails to allege any cognizable violation.

45 C.F.R § 46 limits the use of federal funds for "research involving human subjects," 45 C.F.R. § 46.101, defined as "a systematic investigation, including research development, testing, and evaluation, designed to develop or contribute to generalizable knowledge," 45 CFR 46.102(l). Plaintiffs do not and cannot allege that the Vaccination Program consisted of "research involving

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human subjects" or that Governor Inslee has expended "federal funds" as required to implicate 45 C.F.R § 46.122.

The Belmont Report applies to an "agreement to participate in research," FAC ¶ 196, and provides that "when a person participating in a study is capable of giving informed consent, the scientist conducting the experiment should not proceed without it." *Ernst v. City of Chicago*, 837 F.3d 788, 800 n. 6 (7th Cir. 2016). Plaintiffs have not and cannot allege that the vaccine mandate was for the purpose of research, that they participated in any study, or that they were subjected to an experiment without informed consent.

The ICCPR applies to "medical or scientific experimentation." FAC ¶ 198. Plaintiffs, again, have not and cannot allege any such experimentation.

The Court should, therefore, dismiss Count One of Plaintiffs' Complaint.

b. The Unconstitutional Conditions Doctrine does not apply **(Count 2)**

Plaintiffs next contend that the Proclamation violated the "unconstitutional conditions doctrine," FAC ¶¶ 200–03, which "vindicates the Constitution's enumerated rights by preventing the government from coercing people into giving them up," *Koontz v. St. Johns River Water Mgmt. Dist.*, 570 U.S. 595, 595–96 (2013). But that doctrine does not apply where "there is no governmental benefit at issue." *Norris v. Stanley*, No. 1:21-cv-756, 2022 WL 247507, at *4 (W.D. Mich. Jan. 21, 2022) (cleaned up). And where a "[p]laintiff . . . is an at-will employee, no government benefit [is] denied" by their termination. *Antunes v. Rector & Visitors of Univ. of Va.*, 627 F. Supp. 3d 553, 566 (W.D. Va. 2022).

Here, there is no dispute that Plaintiffs were at-will employees of PeaceHealth, a non-profit healthcare provider. FAC ¶¶ 18–18.82, 19.2; *see also id*. ¶¶ 192, 239 (stating that their claims

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preempt Washington's "at-will employment law"). Accordingly, the Proclamation "does not coerce Plaintiffs into waiving their constitutional rights . . . in order to receive a governmental benefit such as a tax exemption, medical treatment, or some sort of governmental funding," but rather "the 'benefit' at issue here is Plaintiffs' employment . . . ., to which they are not constitutionally entitled." *Norris*, 2022 WL 247507, at *4.

In addition, "a government entity does not impose an unconstitutional condition by enforcing a duly enacted, constitutional law." *Burcham v. City of Los Angeles*, 562 F. Supp. 3d 694, 707 n.4 (C.D. Cal. 2022). And the Supreme Court has "settled that it is within the police power of a state to provide for compulsory vaccination." *Zucht v. King*, 260 U.S. 174, 176 (1922). Because Plaintiffs "have not plausibly alleged that the state could not directly impose a vaccination requirement as part of the state's police power," they have "failed to allege a required 'predicate' of an unconstitutional conditions claim." *Andre-Rodney v. Hochul*, 618 F. Supp. 3d 72, 85 (N.D.N.Y. 2022); *see also Legaretta v. Macias*, 603 F. Supp. 3d 1050, 1070–71 (D.N.M. 2022) (vaccine mandate "does not violate any of Plaintiffs' fundamental rights[, and w]ithout identifying a fundamental right, Plaintiffs' challenge to the Vaccine Mandate as an unconstitutional condition necessarily fails."); *Smith v. Biden*, No. 1:21-CV-19457, 2021 WL 5195688, at *8 (D.N.J. Nov. 8, 2021) (rejecting unconstitutional conditions claim because plaintiffs are "presented with a choice and are not being coerced to give up a fundamental right since there is no fundamental right to refuse vaccination."). The Court should, therefore, dismiss Plaintiffs' unconstitutional conditions claim.

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c. Plaintiffs' Due Process claim fails (Count 4)

Plaintiffs Due Process claim, FAC ¶¶ 209–213, fares no better. The Due Process Clause of the Fourteenth Amendment provides that no state shall "deprive any person of life, liberty, or property, without due process of law," U.S. Const. amend. XIV, § 1, and has both substantive and procedural applications. But Plaintiffs fail to allege the elements of either a substantive or procedural due process claim.

i. Plaintiffs fail to establish a substantive due process claim

"Substantive due process protects individuals from arbitrary deprivation of their liberty by government." *Sylvia Landfield Tr. v. City of Los Angeles*, 729 F.3d 1189, 1195 (9th Cir. 2013). Only "the most egregious official conduct can be said to be arbitrary in the constitutional sense," *Cnty. of Sacramento v. Lewis*, 523 U.S. 833, 846 (1998) (internal quotation marks and citation omitted), and "the alleged deprivation must shock the conscience and offend the community's sense of fair play and decency," *Sylvia Landfield Tr.*, 729 F.3d at 1195 (internal quotation marks and citation omitted). "To establish a violation of substantive due process, a plaintiff must first show a deprivation of some fundamental right or liberty interest that is deeply rooted in this Nation's history and tradition." *Tutor-Saliba Corp. v. City of Hailey*, 452 F.3d 1055, 1061 (9th Cir. 2006) (cleaned up). Plaintiffs cannot do so.

The only purported interest Plaintiffs allege is the "right[] to refuse" the COVID vaccine. FAC ¶ 212. But since 1905—when the Supreme Court sustained a criminal conviction for refusing to be vaccinated, *Jacobsen v. Massachusetts*, 197 U.S. 11 (1905)—courts have consistently held there is no fundamental right to refuse vaccination and, specifically, that there is no right to refuse the COVID vaccine. *See, e.g.*, *Klaasen v. Trustees of Indiana Univ.*, 7 F.4th 592, 593 (7th Cir. 2021) ("Given *Jacobsen*, . . . there can't be a constitutional problem with vaccination against

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SARS-CoV-2.") (internal citation omitted); *Norris v. Stanley*, 567 F. Supp. 3d 818, 821 (W.D. Mich. 2021) ("Plaintiff is absolutely correct that she possesses those rights [to privacy and bodily integrity], but there is no fundamental right to decline a vaccination."); *Johnson*, 2021 WL 4846060, at *13 ("As *Jacobson* reveals, the right to refuse vaccination is not deeply rooted in this nation's history. In fact, the opposite is true.") (internal citation and quotation marks omitted).

Implicating no fundamental right, vaccine mandates are considered under rational basis review,[13] which presumes a mandate's validity so long as it is "rationally related to a legitimate state interest." *City of Cleburne v. Cleburne Living Ctr.*, 473 U.S. 432, 440 (1985). "Governmental action is rationally related to a legitimate goal unless the action is clearly arbitrary and unreasonable, having no substantial relation to public, health, safety, morals, or general welfare." *Sylvia Landfield Tr.*, 729 F.3d at 1193 (cleaned up).

Courts routinely uphold vaccine mandates under this standard. *See, e.g.*, *Kheriaty v. Regents of the Univ. of Cal.*, No. SACV 21-01367 JVS (KES), 2021 WL 4714664, at *6 (C.D. Cal. Sept. 29, 2021) ("The Vaccine Policy satisfies rational basis review under both substantive due process and the equal protection clause."); *Johnson*, 567 F. Supp. 3d at 1254 ("Plaintiffs are not likely to succeed in showing that the Vaccine Orders shock the conscience and thus violate Plaintiffs' rights under the Due Process Clause of the Fourteenth Amendment."); *Valdez*, 559 F. Supp.3d at 1176 ("The vaccination requirements set forth in the PHO, thus grounded in medicine and science, are rationally related to Defendants' legitimate purpose of protecting our community

[13] While the Due Process Clause "provides heightened protection against government interference with certain fundamental rights and liberty interests," *Washington v. Glucksberg*, 521 U.S. 702, 720, 117 S. Ct. 2258, 138 L.Ed.2d 772 (1997), plaintiffs have alleged no such right, *Jacobsen*, 197 U.S. 11; *Klaasen*, 7 F.4th at 593; *Norris*, 567 F. Supp.3d at 821; *Johnson*, 2021 WL 4846060, at *13.

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'against an epidemic of disease [that] threatens the safety of its members.'"); *Williams v. Brown*, 567 F. Supp. 3d 1213, 1228 (D. Or. 2021) ("[T]he Court has no trouble discerning a legitimate state interest in slowing the spread of COVID-19 and the Court concludes that the vaccine mandates are rationally related to furthering that interest.").

And there is no question the Proclamation is valid. The State unquestionably has a legitimate interest in slowing the spread of COVID-19, which at the time of the Proclamation was infecting thousands of Washingtonians daily.[14] Data from that period showed that unvaccinated people were 5 times more likely to contract, 10 times more likely to be hospitalized with, and 10 times more likely to die from COVID-19 than those who were fully vaccinated.[15] Thus, Plaintiffs cannot allege the Proclamation was not rationally related to furthering the state interest in slowing the spread of COVID-19. *Kheriaty*, 2021 WL 4714664, at *6; *Johnson*, 567 F. Supp. 3d at 1254; *Valdez*, 559 F. Supp. 3d at 1176; *Williams*, 567 F. Supp. 3d at 1228. Plaintiffs' substantive due process claim fails.

ii. Plaintiffs fail to establish a procedural due process claim

A procedural due process claim requires: (1) a constitutionally protected liberty or property interest; (2) a deprivation of that interest by the government; and (3) a lack of adequate process. *Shanks v. Dressel*, 540 F.3d 1082, 1090 (9th Cir. 2008). Plaintiffs' claim fails for three reasons.

First, Plaintiffs again fail to identify a "constitutionally protected liberty or property interest." *See supra* Section III.B.2.c.iii; *Shanks*, 540 F.3d at 1090; *Evans v. N.Y.C. Health &*

[14] CDC, *COVID Data Tracker*, *supra* note 1.

[15] CDC, *Monitoring Incidence of COVID-19 Cases, Hospitalizations, and Deaths, by Vaccination Status*, supra note 7.

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Hospitals Corp., No. 21-CV-10378 (PAE) (VF), 2023 WL 5920189, at *6 (S.D.N.Y. Aug. 7, 2023).

Second, as "laws of general applicability affecting a broad geographic area," *Hotel & Motel Ass'n of Oakland v. City of Oakland*, 344 F.3d 959, 969 (9th Cir. 2003), vaccine mandates generally do not implicate procedural due process concerns, *Williams*, 567 F. Supp. 3d at 1224 (procedural due process claim was unlikely to succeed because "the vaccine mandates are plainly laws of broad applicability and apply respectively to healthcare workers, school employees, and state executive employees across Oregon.").

Third, "to the extent that any process is required," *id*., a court in this District has already held that the Proclamation satisfies this requirement because it "created a process by which employees could apply for exemptions and accommodations, and essentially present [their] side of the story to avoid termination," which is "all that [the law] requires," *Pilz*, 2022 WL 1719172, at *7 (cleaned up); *Wise*, 2021 WL 4951571, at *1.

The Court should dismiss Plaintiffs' procedural due process claim.

***d. Plaintiffs' equal protection claim fails* (Count 3)**

Plaintiffs equal protection claim, FAC ¶¶ 204–08, also fails. "The Equal Protection Clause of the Fourteenth Amendment commands that no state shall deny to any person within its jurisdiction the equal protection of the laws, which is essentially a direction that all persons similarly situated should be treated alike." *City of Cleburne*, 473 U.S. 432, 439 (cleaned up). To prevail on an equal protection claim, a plaintiff must "show that a class that is similarly situated has been treated disparately." *Boardman v. Inslee*, 978 F.3d 1092, 1117 (9th Cir. 2020) (internal quotation marks and citation omitted). Where no suspect class is implicated, a state action "need

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only rationally further a legitimate state purpose to be valid." *Minn. State Bd. for Cmnty. Colls v. Knight*, 465 U.S. 271, 291 (1984). "The rational basis review test is functionally the same under substantive due process and the Equal Protection Clause," *Kheriaty*, 2021 WL 4714664, at *7. "Given the standard of review, it should come as no surprise that the [courts] hardly ever strike down a policy as illegitimate under rational basis scrutiny." *Trump v. Hawaii*, 585 U.S.----, 138 S. Ct. 2392, 2420 (2018).

Plaintiffs do not allege they are members of a suspect class, nor can they. *See Kheriaty*, 2021 WL 4714664, at *7 ("Whether the class here is formulated as 'non-vaccinated individuals,' 'individuals who have previously had COVID-19,' or 'non-vaccinated individuals with immunity to COVID-19,' [plaintiff] presents no authority to show that any court has found a similar classification to be suspect or quasi-suspect."); *Valdez*, 559 F. Supp. 3d at 1178 (vaccine mandate does not "target a suspect class, as it does not 'categorize persons based on suspect classifications, such as race and national origin,' or on 'quasi-suspect' classifications, such as gender and illegitimacy."). Accordingly, the Proclamation is subject only to rational basis review—which it easily passes.

"[A]s with . . . substantive due process claim[s]," courts have "no trouble discerning a legitimate state interest in slowing the spread of COVID-19" and upholding vaccine mandates under this standard. *Williams*, 567 F. Supp. 3d at 1228; *see also Kheriaty*, 2021 WL 4714664, at *6; *Valdez*, 559 F. Supp. 3d at 1176; *Hochul*, 618 F. Supp. 3d at 81; *cf. Johnson*, 567 F. Supp. 3d at 1254. The Court should dismiss Plaintiffs' equal protection claim. *See Bacon*, 2022 WL 2381021, at *3 (dismissing equal protection challenge to Proclamation because, "[w]hile the Proclamation differentiates between vaccinated and unvaccinated employees, the classifications

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serve a legitimate government purpose, which is to slow the spread of COVID-19, and the classifications are not arbitrary or irrational").

e. Plaintiffs' "Spending Clause Doctrine" claim fails **(Count 5)**

Though Plaintiffs purport to state a claim under the "Spending Clause Doctrine," it is entirely unclear what that claim is. No federal case discusses any such doctrine, and while the Spending Clause of the United States Constitutions provides limits on the *federal government's* ability to place conditions on the use of federal funds, *S. Dakota v. Dole*, 483 U.S. 203, 206 (1987), that limitation does not apply to state officials like Governor Inslee. Plaintiffs' failure to allege any "cognizable legal theory" warrants dismissal. *Robertson v. Dean Witter Reynolds, Inc.*, 749 F.2d 530 534 (9th Cir. 1984).

Instead, Plaintiffs purport to rely on "rights" under the Provider Agreement, 21 U.S.C. §360bbb-3, 45 CFR § 46.122, 10 U.S.C. § 980 and the Fourteenth Amendment, FAC ¶¶ 215, 232—none of which give Plaintiffs a viable cause of action.

21 U.S.C. §360bbb-3 and ***45 C.F.R § 46*** do not apply for the reasons discussed above. *See supra* Section III.B.2.

The Provider Agreement cannot establish any claim against Governor Inslee for the reasons discussed below. *See infra* Section III.C.1.

10 U.S.C. § 980 is inapposite and not enforceable by Plaintiffs. That statute provides that "[f]unds appropriated to the Department of Defense may not be used for research involving a human being as an experimental subject unless-- (1) the informed consent of the subject is obtained in advance[.]" 10 U.S.C. § 980(a). Once again, Plaintiffs make no allegations either that the Vaccination Program involved "research" or that that any funds from the U.S. Government were

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appropriated to the Department of Defense for the purpose of vaccination administration in Washington. Moreover, the Supreme Court has "rejected attempts to infer enforceable rights from Spending Clause statutes" unless they "unambiguously confer an enforceable right upon the Act's beneficiaries." *Gonzaga Univ.*, 536 U.S. at 281. By contrast, statutes that "have an aggregate, not individual, focus, and . . . serve primarily to direct the . . . distribution of public funds . . . create no rights enforceable under § 1983." *Id*. at 290. Applying that standard, the Supreme Court has held that a statute providing that "[n]o funds shall be made available . . . to any educational agency or institution which has a [prohibited] policy or practice," did not create a right enforceable under § 1983. *Id*. at 289. For the same reason, 10 U.S.C. § 980's limitation on the "distribution of public funds" creates no enforceable right.

The Fourteenth Amendment is inapplicable. Plaintiffs offer no explanation for their invocation of the Fourteenth Amendment in this claim and, to the extent Plaintiffs are reiterating their claims under the Due Process and Equal Protection Clauses, those claims fail for the reasons discussed above. *See supra* Section III.B.2.c–d.

The Court should dismiss Plaintiffs' indecipherable "Spending Clause Doctrine" claim.

C. Plaintiffs' State Law Claims Fail As a Matter of Law

Plaintiffs' attempt to state a claim against Governor Inslee under state law fares no better: (1) they identify no contract he was party to and could have breached; (2) they fail to allege the elements of any specific "employment tort" and, in any event, concede Governor Inslee was not their employer; (3) they cannot allege that the Proclamation—a reasoned exercise of the State's police power to protect the lives of Washington residents—constitutes "extreme or outrageous" conduct; (4) their "invasion of privacy and defamation" allegations have nothing to do with Governor

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Inslee; and (5) their "implied right of action" claim concerns only PeaceHealth. The Court should, therefore, dismiss Plaintiffs' state law claims against Governor Inslee.

1. Plaintiffs' Breach of Contract Claim Fails (Count 6)

Plaintiffs allege that the Proclamation "deprived [them of] the intended benefits conferred" by the Provider Agreement. FAC ¶ 237. But even if Plaintiffs could establish they are third-party beneficiaries, the Provider Agreement gives them no claim against Governor Inslee because he was not a party to that agreement, *See* FAC ¶ 41, Ex. A, and so could not have committed any breach. *See Jones-Alley v. MTGLQ Invs., LP*, No. C19-0708-JCC, 2020 WL 433354, at *2 (W.D. Wash. Jan. 28, 2020), *aff'd sub nom. Alley v. MTGLQ Invs.*, LP, 848 F. App'x 742 (9th Cir. 2021) (dismissing breach of contract claim against defendant who was "not a party to" the contract); *Barnhart v. Points Dev. US Ltd.*, No. 2:16-cv-02516-CAS(Ex), 2016 WL 3041036, at *3 (C.D. Cal. May 25, 2016) ("[P]laintiff cannot maintain a breach of contract claim against an entity who is not a party to the contract") (applying California and Texas law). The Court should dismiss Plaintiffs' breach of contract claim against Governor Inslee.

2. Plaintiffs' "Employment Tort" Claims Fail (Count 7)

Plaintiffs vague allegation that Defendants committed unspecified "common law employment torts" fails for two reasons. As an initial matter, Plaintiffs' failure to specify the nature of their claims is, itself, grounds for dismissal. *See Robertson*, 749 F.2d at 534. Moreover, because Plaintiffs have not and cannot allege that Governor Inslee was their employer, no "employment tort" can stand against Governor Inslee. *See, e.g.*, *Smith v. Bates Technical College*, 139 Wn.2d 793, 800-01, 991 P.2d 1135 (2000) (Washington tort of wrongful discharge constrains actions of *employer*). The Court should, therefore dismiss these claims against Governor Inslee.

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3. Plaintiffs' Outrage Claim Fails (Count 8)

Plaintiffs outrage claim also fails as a matter of law. FAC ¶¶ 255–59. That tort requires proof of three elements: (1) extreme and outrageous conduct, (2) intentional or reckless infliction of emotional distress, and (3) actual result to plaintiff of severe emotional distress. *Reid v. Pierce County*, 136 Wn.2d 195, 202 (1998). The alleged conduct "must be 'so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.'" *Reyes v. Yakima Health Distr.*, 191 Wn.2d 79, 91 (2018) (internal quotation marks omitted) (quoting *Grimsby v. Samson*, 85 Wn.2d 52, 59 (1975)). "Consequently, the tort of outrage 'does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.'" *Kloepfel v. Bokor*, 149 Wn.2d 192, 196, (2003) (internal quotation marks omitted) (quoting *Grimsby*, 85 Wn.2d at 59).

Federal courts have consistently held that employee COVID-19 vaccination mandates do not give rise claims for intentional infliction of emotional distress—a required element of outrage. *See Cala v. Moorings Park Cmty Health, Inc.*, No. 2:22-CV-635-JES-NPM, 2022 WL 17405581, at *5 (M.D. Fla. Dec., 2, 2022), *reconsideration granted*, 2023 WL 1102646 (M.D. Fla. Jan. 30, 2023) (dismissing intentional infliction of emotional distress claim based on her employment termination for refusing to take the COVID-19 vaccine); *Finkbeiner v. Geisinger Clinic*, No. 4:21-CV-01903, 2022 WL 3702004, at *7 (M.D. Pa. Aug. 26, 2022); *Cesare v. PACT MSO, LLC*, No. 3:23-CV-523 (SVN), 2023 WL 5893429 at *6 (D. Conn. Sept. 11, 2023).

The circumstances surrounding the Proclamation demonstrate why: Governor Inslee issued the Proclamation based on the virus' "significant progression in Washington," the "high risk it poses to our most vulnerable populations and our health care system," and the conclusion of

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"epidemiological modeling experts . . . that the spread of COVID-19, if left unchecked, threatened to overwhelm portions of Washington's public and private health-care system." Procl. 21-14 at 1. As described above, the CDC reported at the time that unvaccinated people were 5 times more likely to contract, 10 times more likely to be hospitalized with, and 10 times more likely to die from COVID-19 than those who were fully vaccinated.[16] Governor Inslee concluded—consistent with CDC guidance[17]—that the COVID-19 vaccines were "safe and effective." Procl. 21-14 at 2. For these reasons, roughly half of the United States was under a vaccine mandate of some form.[18]

Governor Inslee's reasoned exercise of the State's established police powers is neither "outrageous," nor "extreme." The Court should dismiss Plaintiffs' outrage claim.

4. Plaintiffs' "Invasion of Privacy and Defamation of Character" Claim Fails (Count 9)

Plaintiffs' "Invasion of Privacy and Defamation of Character" claim is based solely on the conduct of PeaceHealth, not Governor Inslee.[19] Plaintiffs allege that "*PeaceHealth* established an identification system (badges) denoting employees' private health information (use of investigational drugs) and forced employees to wear or not to wear the badge under threat of

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[16] CDC, *Monitoring Incidence of COVID-19 Cases, Hospitalizations, and Deaths, by Vaccination Status — 13 U.S. Jurisdictions, April 4–July 17, 2021* (Sept. 17, 2021), http://bit.ly/3YQ9tMM.

[17] CDC, *Overview of COVID-19 Vaccines*, *supra* note 5.

[18] PBS News Hour, Here's who's covered by COVID-19 vaccine mandates in the U.S. so far (Sept. 16, 2021), https://www.pbs.org/newshour/health/heres-whos-covered-by-covid-19-vaccine-mandates-in-the-u-s-so-far.

[19] Invasion of privacy exists where one publicizes "a matter concerning the private life of another . . [and] the matter publicized is of a kind that: a) would be highly offensive to a reasonable person; and b) is not of legitimate concern to the public." *Reid*, 136 Wn.2d at 205. Defamation requires "a false and defamatory statement concerning another, an unprivileged communication to a third party, fault amounting at least to negligence on the publisher's part, and either actionability of the statement or special harm caused by the publication. *Eastwood v. Cascade Broad. Co.*, 106 Wn.2d 466, 470 (1996).

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penalty"; "*PeaceHealth* staff informed the public that the badge, or absence of one, disclosed the private health information about each staff member, including Plaintiffs;" and "*PeaceHealth* defamed the character of Plaintiffs when fraudulently informing Washington State Employment Security Department that Plaintiffs engaged in misconduct and, therefore, should be denied unemployment benefits leading to economic damages." FAC ¶¶ 261, 263, 266 (emphases added).

Absent any relevant allegations against Governor Inslee, Plaintiffs' invasion of privacy claim against him fails.

5. Plaintiffs' Implied Right of Action Claim Fails (Count 10).

Plaintiffs allege that "[s]hould the court not agree that *PeaceHealth* was engaged in State Action, . . . 21 U.S.C. § 360bbb-3 contains an implied right of action." FAC ¶ 271 (emphasis added). Plaintiffs have no claim under 21 U.S.C. § 360bbb-3 for the reasons stated above. *See supra* Section III.B.2.a. And regardless, the Court should dismiss this claim against Governor Inslee because Plaintiffs' allegations once again relate only to PeaceHealth.

D. Qualified Immunity Bars Claims Against Governor Inslee in His Individual Capacity

Government officials sued in their individual capacity are entitled to qualified immunity "from liability for civil damages insofar as their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known." *Pearson v. Callahan*, 555 U.S. 223, 231 (2009).[20] For a right to be clearly established, "existing precedent must have placed the statutory or constitutional question beyond debate" such that "every

[20] A government official may be sued in an official or individual capacity. *See Kentucky v. Graham*, 473 U.S. 159, 165 & n.10 (1985). "Personal capacity suits seek to impose personal liability upon a government official for actions he takes under color of law. Official-capacity suits, in contrast generally represent only another way of pleading an action against an entity of which an officer is an agent." *Id*. at 165 (citation and internal quotation marks omitted).

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'reasonable official would [have understood] that what he is doing violates that right.'" *Ashcroft v. al-Kidd*, 563 U.S. 731, 741 (2011) (citations omitted). The plaintiff in a § 1983 action bears the burden of proving that the right allegedly violated was clearly established at the time of the official's allegedly impermissible conduct. *Camarillo v. McCarthy*, 998 F.2d 638, 639 (9th Cir. 1993).

Plaintiffs' claims for breach of contract, employment torts, outrage, invasion of privacy, and defamation do not even allege constitutional or statutory rights. To the extent these claims are brought against Governor Inslee in his individual capacity, Plaintiffs cannot overcome the presumption of immunity.

And Plaintiffs' fanciful 1983 claims fail to identify any actual rights purportedly violated by the Proclamation, *see supra* Sections III.B, let alone any right that was "clearly established at the time of" the Proclamation. *Truman v. Orem City*, 1 F.4th 1227 1235 (10th Cir. 2021). Thus, Plaintiffs cannot overcome the presumption that Governor Inslee, in his individual capacity, is immune from suit with regards to the constitutional and statutory claims. This Court should dismiss this case against Governor Inslee in his individual capacity.

IV. CONCLUSION

Governor Inslee respectfully requests that this Court dismiss the FAC with prejudice.

DATED this 30th day of October, 2023.

I certify that this motion contains 7,930 words, in compliance with the Local Civil Rules.

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